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Q. The DPSP provide a roadmap for a welfare State, but their non-justiciable nature often hinders their implementation. In this context, critically examine the conflict b/w DPSP's and Fundamental rights, citing landmark judgement and constitutional amendments.

As per article 38, Establishment of welfare State is ensured by DPSP. Although it is not enforceable by any court but the principles are fundamental in the governance and it shall be the duty of state to apply these principle in making law.

Since after independence the conflict between DPSP and F.R's are witnessed over the years leading to constitutional amendments.

Conflicts b/w DPSP and FR's

1) Nature	DPSP	FR's
	Non-justiciable non-enforceable	Justiciable and enforceable

Cases :-

1) Champakam Dorairajan case :- (1951)

In this case Supreme court held that a law seeking to implement DPSP cannot violate FRs and if in order to implement DPSP Constitutional amendment in FR's shall be required.

led First constitutional amendment. 1951.

2) Golaknath case :-

It declared F.R's as sacrosanct the scope of implementation of DPSP was restricted and DPSP were made subordinate to F.R's.

3) Keshwananda Bharti case 1973 :-

The court upheld Basic Structure Doctrine, limiting Parliamentary power to amend F.R's, ensuring they are not eroded by DPSP's.

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4) Minerva mill case (1980) :-

Supreme court said that the balance between DPSP and FR's is essential and F-R's cannot be completely destroyed in the name of implementing DPSP's.

→ 44th Constitutional amendment 1978-

↳ removed Article 31 from F-R

↳ Right to property

• made it a constitutional right under Article 300A.

→ 102nd & 103rd Amendments → EWS Quota 2019.
reservation for weaker section (Economically)

As per minerva mill case S.C declared that F-R's and DPSP are complementary and supplementary to each other and harmony between the two forms the part of basic structure of the constitution. ~~various~~

Landmark Judgement and constitutional
amendments have ensured socio-economic
justice while protecting fundamental rights.